

Government of Bihar
Labour Resource and Migrant Workers Welfare Department
Notification

In exercise of the powers conferred by section 99 of The Industrial Relations Code, 2020 (35 of 2020) read with section 24 of the General Clauses Act, 1897 (10 of 1897) and in supersession of the –

- (i) Bihar and Orissa Trade Union Regulations, 1928
- (ii) The Bihar Industrial Employment (Standing Orders) Rules, 1947 and
- (iii) The Bihar Industrial Dispute Rules, 1961;

the Governor of Bihar is pleased to make following rules, as required by sub-section (1) of said section namely; -

CHAPTER- I
PRELIMINARY

1. Short title, extent, application and commencement-

- (i) These rules may be called The Industrial Relation (Bihar) Rules, 2026.
- (ii) They extend to whole of the state of Bihar.
- (iii) They shall come into force on the date of their publication in the Official Gazette.

2. Definition-

- (1) In these rules, unless the context otherwise requires,
 - (a) “Code” means the Industrial Relations Code, 2020 (35 of 2020);
 - (b) “Section” means the section of the Code;
 - (c) “Electronically” means any information or communication submitted by email or uploading on the designated portal or digital payment in any mode for the purpose of Code;
 - (d) “Form” means a form appended to these rules.
- (2) The words and expressions used in these rules which are not defined therein, but are defined in the Code or rules made thereunder, shall have their respective meaning as assigned to them in the Code or Rules.

3. Memorandum of settlement under clause (zi) of section 2.- (1) The settlement arrived at in the course of conciliation proceedings or a written agreement between the employer and worker arrived at otherwise than in the course of conciliation proceeding shall be in Form I.

(2) The settlement shall be signed by,-

(a) in the case of an employer, by the employer himself, or by his authorised agent, or when the employer is an incorporated Company, or other body corporate, by the agent, manager or other principal officer of the corporation or such other body corporate, and;

(b) on behalf of workers, by any two of the following officers of Trade Union, namely: -

- (i) the President;
- (ii) the Vice-President;
- (iii) the Secretary (including the General Secretary); and
- (iv) a Joint Secretary; or

(v) any two other officer of the Trade Union authorized in this behalf by the President and Secretary of the Union; or

(vi) by five representatives of workers duly authorized in this behalf at the meeting of the workers held for the purpose by simple majority;

Provided that the employer may, with the mutual agreement with workers of the industrial establishment, deploy an electronic process of conducting the election process over an information technology application, online platform or like other platform to enable as to how the representatives of workers shall be elected;

(c) In case of an industrial dispute between individual worker and employer, by the workers concerned.

(3) Where the settlement is arrived at in the course of conciliation proceedings the conciliation officer shall send a report thereof to the State Government together with a copy of the memorandum of settlement signed by the parties to the dispute.

(4) Where a settlement is arrived at between an employer and his workers otherwise than in the course of conciliation proceedings before a Conciliation Officer, the parties to the settlement shall jointly send a copy thereof electronically or otherwise to the State Government and conciliation officer.

(5) The conciliation officer shall file all settlements effected under this Code in respect of industrial disputes in the area within his jurisdiction in the register maintained electronically or otherwise. The register shall contain the details including serial number, name of the industry, parties to the settlement, date of settlement, remarks and whether settlement was effected at the intervention of conciliation officer or by mutual negotiation:

Provided that signature of conciliation officer on the agreement shall not be necessary where the agreement for settlement is arrived at outside conciliation:

Provided further that nothing in this rule shall prohibit a settlement between a worker or workers or Trade Union and an employer on mutually agreed terms and such settlement may be in the form other than Form I.

Chapter II

BI-PARTITE FORUMS

4. Constitution of Works Committee, etc. under section 3.-

(1) **Constitution of Work Committee-** Every employer of an industrial establishment to whom an order made by the State Government under sub-section (1) of section 3 relates, shall forthwith proceed to constitute a Works Committee (hereinafter in this rule referred to as the Committee) to promote measures for securing and preserving amity and good relations between the employer and workers and, to that end, to comment upon matters of common interest or concern, in the manner as is specified in this rule.

(2) Number of Member- The number of members constituting the Committee shall be fixed so as to afford representation to the various categories, groups and class of workers engaged in, and to the sections, shops or departments of the industrial establishment:

Provided that the total number of members of the Committee shall not exceed twenty:

Provided further that the number of representatives of the workers in the Committee shall not be less than the number of representatives of the employer therein.

Provided that the industrial establishment in which women workers are employed shall have adequate representation of women workers in Works Committee and such representation shall not be less than the proportion of women workers to the total workers employed in the industrial establishment.

(3) Representation of the Employer- Subject to the provisions of this rule, the representatives of the employer in the Committee shall be nominated by the employer and shall, as far as may be possible, be officials in direct touch with, or associated with, the working of the industrial establishment.

(4) Consultation with Trade Union- (a) Where any worker of the industrial establishment is members of a registered Trade Union or Unions, the employer shall ask such registered Trade Union or Unions to inform him in writing as to how many of the workers are members of such Trade Union or Unions; and

(b) where an employer has reason to believe that the information furnished to him under clause (a) by the registered Trade Union or Unions is false, he may, after informing such registered Trade Union or Unions, refer the matter to Deputy Labour Commissioner having jurisdiction, who shall, after hearing the parties, shall decide the matter and his decision shall be final.

(5) Group of Worker's representative's :- On receipt of the information called for under sub-rule (4), the employer shall provide for the choosing of worker's representative on the Committee in the following manner, namely: -

(a) in the case of a negotiating union under sub-section (2) or sub-section (3) of section 14, such negotiating union shall nominate the worker's representatives of the Committee;

(b) in the case of the negotiating council under sub-section (4) of section 14, the nomination shall be in such manner that every registered Trade Union representing in the negotiating council shall be represented in the Committee in proportion to the number of workers of the industrial establishment who are members of such Trade Union;

(c) where there is no recognised negotiating union or negotiating council referred to in clauses (a) and (b), the workers of the industrial establishment shall elect amongst themselves the worker's representatives of the Committee:

Provided that the employer may, with the mutual agreement with workers of the industrial establishment, deploy an electronic process of conducting the election process over an information technology application, online platform or like other platform to enable as to how the representatives of workers shall be elected for the Committee under this clause:

Provided further that where a registered Trade Union neglects or fails to furnish the information called for under clause (a) of sub-rule (4) within one month of the date on which it is so called for, then, such Trade Union shall for the purpose of this rule be treated as if it did not exist:

Provided also that where any reference has been made by the employer under clause (b) of sub-rule (4), the process of choosing the worker's representative relating thereto shall be held on receipt of the decision of the concerned Deputy Labour Commissioner.

(6) Electoral Constituencies: - The employer may, if he thinks fit, sub-divide the electoral constituency or constituencies, as the case may be, and direct that workers shall vote in either by groups, sections, shops or departments.

(7) Qualification of Candidates for election: Any worker of not less than 19 years of age and with a service of not less than one year in the industrial establishment may, if nominated as provided in this rule, be a candidate for election as a representative of the workers of the Committee:

Provided that the service qualification shall not apply to the first election in an industrial establishment which has been in existence for less than a year.

Explanation — A worker who has put in a continuous service of not less than one year in two or more industrial establishments belonging to the same employer shall be deemed to have satisfied the service qualification specified under this sub-rule.

(8) Qualification for voters: All workers who are not less than 18 years of age and who have put in not less than 6 months' continuous service in the industrial establishment shall be entitled to vote in the election of the representative of workers.

Explanation.— A worker who has put in continuous service of not less than six months in two or more industrial establishments belonging to the same employer shall be deemed to have satisfied the service qualification specified under this rule.

(9) Fixation of schedule for Election: (a) The employer shall give a minimum time period of at least three working days for filing of nomination along with other requisite details while fixing a date as the closing date for receiving nominations from candidates for election as worker's representatives of the Committee.

(b) The date fixed by the employer for holding the election referred to in clause (i) shall not be earlier than three days and later than fifteen days after the closing date for receiving nominations.

(c) The date of election fixed under sub-rule (i) shall be notified at least seven days in advance to the workers concerned and such notice, which shall specify the number of seats to be elected, shall be affixed on the notice board or electronic notice board of the industrial establishment and given adequate publicity amongst the workers

(10) Nomination of Candidates for election: (a) Every nomination for election as worker's representative of the Committee shall be made on a nomination paper to be provided by employer and the copies thereof shall be supplied by the employer to the workers requiring them.

(b) Each nomination paper referred to in sub-rule (10) shall be signed by the candidate to whom it relates and attested by at least two other voters belonging to the group, section, shop or department, which the candidate seeking election shall represent, and shall be delivered to the employer.

(11) Scrutiny of Nomination papers: (a) On the day following the last day fixed for filing nomination papers, the nomination papers shall be scrutinized by the employer in the presence of the candidates and the attesting persons and those nominations which are not valid shall be rejected;

(b) A nomination paper shall be held to be not valid under sub-rule (11), if—

(i) the candidate nominated is ineligible for being candidate under sub-rule (7); or

(ii) the requirements of sub-rule (10) have not been complied with:

Provided that where a candidate or an attesting person is unable to be present at the time of scrutiny, he may send a duly authorised nominee for the purpose.

(12) Withdrawal of Candidates: Any candidate whose nomination for election has been accepted may withdraw his candidature within 48 hours of the completion of scrutiny of the nomination papers.

(13) Voting in Election: (a) If the number of candidates who have been validly nominated for election as worker's representative of the Committee is equal to the number of seats, the candidates as such shall be forthwith declared as duly elected.

(b) Where, in any industrial establishment, the number of candidates validly nominated for election as worker's representative of the Committee is more than the number of seats allotted to it, voting shall take place on the day fixed for election.

(14) Officers of the Committee: (a) The Committee shall have among its office-bearers a Chair person, a ViceChairperson, a Secretary and a Joint-Secretary.

(b) The Chairperson of the Committee shall be nominated by the employer from amongst the employer's representatives of the Committee and he shall, as far as possible, be the head of the industrial establishment.

(c) The Vice-Chairperson shall be elected by the members of the Committee representing the workers, from amongst themselves.

Provided that in the event of equality of votes in the election of the Vice-Chairperson, the matter shall be decided by a draw of lot.

(d) The Secretary and the Joint-Secretary of the Committee shall be elected every year.

(e) The Committee shall elect the Secretary and the Joint Secretary provided that where the Secretary is elected from amongst the representatives of the employers, the Joint Secretary shall be elected from amongst the representatives of the workers and vice versa:

Provided that the post of the Secretary or the Joint Secretary, as the case may be, shall not be held by a representative of either the employer or the workers for three consecutive years:

Provided further that the employer's representatives shall not take part in the election of the Secretary or Joint Secretary, as the case may be, and only the representatives of the workers shall be entitled to vote in elections for the post of Secretary or Joint Secretary:

Provided also that in the event of equality of votes in an election under this sub-rule, the matter shall be decided by a draw of lot.

(15) Term of Office: (a) The term of office of the members of the Committee other than a member chosen to fill a casual vacancy shall be three years.

(b) Every member chosen to fill a casual vacancy shall hold office for the remaining period of the term of his predecessor.

(c) The membership of any member, who fails to attend three consecutive meetings of the Committee without obtaining leave from the Chairperson of the Committee, shall stand forfeited.

(16) Vacancies: In the event of worker's representative ceasing to be a member under clause (c) of sub-rule (15) or ceasing to be employed in the industrial establishment or in the event of his resignation, death or otherwise, his successor shall be chosen in accordance with the provisions of this rule from the same group to which the member vacating the seat belonged for the remaining period of the committee.

(17) Power to Co-Opt: The Committee shall have the right to co-opt in a consultative capacity, persons employed in the industrial establishment having particular or special knowledge of a matter under discussion. Such co-opted member shall not be entitled to vote and shall be present at meetings only for the period during which the particular question is before the Committee.

(18) Meetings: (a) the Committee may meet as often as necessary but not less often than once in quarter;

(b) the Committee shall at its first meeting regulate its own procedure.

(19) Facilities for meetings, etc.: (a) the employer shall provide accommodation for holding meetings of the Committee. He shall also provide all necessary facilities to the Committee and to the members thereof for carrying out the work of the Committee.

(b) The Committee shall ordinarily meet during working hours of the industrial establishment concerned on any working day and the representatives of the workers shall be deemed to be on duty while attending the meeting;

(c) the Secretary of the Committee may with the prior concurrence of the Chairman, put up notice regarding the functions of the Committee on the notice board of the industrial establishment.

(20) Annual Return: The employer shall submit the details of the constitution and the functioning of the Committee as a part of unified annual return provided in the rules made in this behalf under the Occupational Safety, Health and Working Condition Code, 2020 (37 of 2020).

(21) Dissolution of Works Committee: The State Government, or the officer authorized on its behalf, may after making such inquiry as it or he may deem fit, dissolve any Committee at any time, by an order in writing, if it or he, as the case may be, is satisfied that the Committee has not been constituted in accordance with this rule, or that not less than two-thirds of the number of representatives of the workers have without any reasonable justification failed to attend three consecutive meetings of the Committee or that the Committee has, for any other reason, ceased to function:

Provided that where the Committee is dissolved under this sub-rule, the employer may, and if so, required by the State Government or, as the case may be, by such officer, shall take steps to re-constitute the Committee in accordance with this rule.

5. Choosing of members from the employers and the workers for Grievance Redressal Committee under sub-section (2) of section 4- (1) The Grievance Redressal Committee (hereinafter in this rule referred to as the Grievance Committee) in an industrial establishment employing twenty or more workers, shall consist of equal number of members representing the employer and workers, which shall not exceed ten.

(2) The representatives of the employer in the Grievance Committee shall be nominated by the employer and shall, as far as may be possible, be officials in direct touch with or associated with the working of the industrial establishment, preferably the heads of major departments of the industrial establishment.

(3) The worker's representative of the Grievance Committee shall be chosen in the following manner, namely: —

(a) where there is a negotiating union under sub-section (2) or sub-section (3) of section 14, such negotiating union or negotiating council, as the case may be, shall nominate the worker's representatives of the Grievance Committee;

(b) in the case of a negotiating council under sub-section (4) of section 14, the nomination shall be in such manner that every registered Trade Union representing in the negotiating council shall be represented in the Grievance Committee in proportion to the number of workers of the industrial establishment who are members of such Trade Union;

(c) where there is no recognized negotiating union or negotiating council referred to the clauses (a) and (b), the workers of the industrial establishment shall choose amongst themselves the worker's representatives of the Grievance Committee:

Provided that the employer may, deploy an electronic platform for choosing worker's representatives under this clause, over an information technology application, online platform or such other like platform:

Provided further that there shall be adequate representation of women workers in the Grievance Committee and such representation shall not be less than the proportion of women workers to the total workers employed in the industrial establishment.

(4) The tenure of the members of the Grievance Committee shall be three years.

(5) Where there is no recognized negotiating union or negotiating council and if any dispute arises regarding choosing of the worker's representative to the Grievance Committee, the matter may be referred to the concerned Deputy Labour Commissioner, who shall, after hearing the parties, decide the matter, whose decision shall be final.

6. Application in respect of any dispute to be filed before the Grievance Redressal Committee by any aggrieved worker under sub-section (5) of section 4.- (1) Any aggrieved worker may file an application stating his grievance therein and dispute before the Grievance Redressal Committee giving name, designation, worker code or token number, department where he is posted, length of his service in years, category of worker, address for correspondence, contact number, details of grievances and the relief sought therefor.

(2) The application referred to in sub-rule (1) may be sent electronically or otherwise.

(3) The application referred to in sub-rule (1) shall be filed within one year from the date on which the cause of action of such dispute arose.

7. Manner of filing application for the conciliation of grievance as against the decision of the Grievance Redressal Committee to the conciliation officer under sub-section (8) of section 4.- Any worker who is aggrieved by the decision of the Grievance Redressal Committee or whose grievance is not resolved by the said Committee within thirty days of receipt of the application, may file an application online on designated portal or by registered post or speed post, or in person, within a period of sixty days from the date of the decision of the Grievance Redressal Committee or from the date on which the period specified in sub-section (6) of section 4 expires, as the case may be, to the conciliation officer through the Trade Union, of which he is a member:

Provided that in case of manual receipt of such application through registered post or speed post or in person, the conciliation officer shall get the same digitized and enter the particulars of the application in the online mechanism under intimation to the Trade Union and worker.

Chapter III TRADE UNION

8. Payment for subscription by members of the Trade Union and donation from such members and others under clause (f) of section 7.- The payment of minimum subscription by member of Trade Union which shall not be less than-

- (i) Fifty rupees per annum for rural and unorganized sector workers;
- (ii) Two hundred rupees per annum for workers in any other cases;

9. Manner of annual audit under clause (j) of section 7-(1). The annual audit of the account of any registered trade union or federation of union shall be conducted by an auditor authorized to audit the account of companies under section 139 of Companies act 2013.

Provided that where the membership of trade union did not at any time during the financial year exceed 250, annual audit of the accounts may be conducted by any two members of the union.

(2) The auditor or auditors shall be given access to all the books of the Trade Union and shall verify the annual return with the accounts and vouchers relating thereto and shall thereafter sign the auditor's declaration appended to **Form II**, indicating separately on that Form under his

signature or their signatures, a statement showing in what respect he or they find the return to be incorrect, unvouched or not in accordance with the Act. The particulars given in this statement shall indicate-

(a) every payment which appears to be unauthorized by the rules of the Trade Union or contrary to the provisions of the Act,

(b) the amount of any deficiency or loss which appears to have been incurred by the negligence or misconduct of any person,

(c) the amount of any sum which ought to have been incurred but is not brought to account by any person;

Provided in case of Audit of political funds of a registered Trade Union, the audit shall be carried out along with the audit of the general account of the Trade Union and by the same auditor or auditors.

10. Form of declaration to be made by an affidavit and the manner of making the same under clause (a) of sub-section (1) of section 8-

(1) Every application seeking registration of a Trade Union shall be submitted to the Registrar through electronic mode and shall be accompanied by a declaration affirming the authenticity and correctness of the information furnished therein. Such application shall further be supported by an affidavit in **Form III**, declaring that none of the executive members or office bearers of the Trade Union has been convicted by any court of law for an offence involving moral turpitude.

(2) Every Trade Union registered under the Trade Unions Act, 1926 having valid registration immediately before commencement of this Industrial Relation code 2020, shall file a statement along with constitution of the executive of the Trade Union in accordance with Code along with the rules of the Trade Union updated in accordance with Section 7 within 3 months and the Registrar shall amend his records accordingly and send intimation regarding this to concerned Trade Union.

(3) The fee payable for the registration of a trade union shall be Rs. 500/- (Rs. Five Hundred)

(4) The fee payable for registration of alterations of rules/by-laws shall be Rs. 100/- (Rs. One Hundred) for each set of alterations made simultaneously.

11. Form of general statement of the assets and liabilities of the Trade Union under sub-section (2) of section 8- The statement of the assets and liabilities of the Trade Union shall be submitted to the Registrar in Form IV electronically along with a copy of annual audit report.

12. Form of application for registration under sub-section (1) of Section 8, and the form of issuing certificate of registration to be issued by the Registrar to the applicant Trade Union under sub-section (2) of section 9- The application for registration under sub-section (1) of section 8, shall be in form V and the certificate of registration to be issued by the Registrar to the applicant under sub-section (2) of section 9 shall be in form VI.

13. Register for entering the name and other particulars of Trade Union under sub-section (3) of section 9 and Verification of application of the Trade Union under sub-section (5)(i) of section 9- (1) The Registrar after issuing the certificate of registration shall register the name and other particulars of the Trade Union by entering in a register, to be maintained in Form-VII electronically for the purpose of sub-section (3) of section 9.

(2) The certificate of registration of Trade Union issued by Registrar may be withdrawn or cancelled after the verification done by the concerned authority as notified by State Government for the purpose of sub-section (5)(i) of section 9.

(3) For the purpose of verification of Trade Union the Registrar may use Aadhar Identification.

14. Period within which appeal is to be preferred by Trade Union to Tribunal under sub-section (1) of section 10- If an application is refused by the Registrar for granting registration or cancel registration certificate under Sub-Section (5) of Section 9, the person aggrieved may appeal to the Tribunal within the period of 60 days from the date of refusal of application or cancellation of certificate.

15. Manner of sending the communication and notices under sub-section (1) of Section 11 and the manner to inform the Registrar under sub-section (3) of section 11-

(1). All communication and notices to the registered Trade Union shall be sent by the Registrar to the address of the head office of the Trade Union as entered in the register in Form VII through registered post and electronically.

(2). All communication to the Registrar by the Trade Union for the purpose of Sub-Section (2) and Sub-Section (3) of Section 11 shall be only through electronic mode.

16. Matters on which negotiating union or negotiating council, as the case may be, in an industrial establishment may negotiate with the employer of the industrial establishment under sub-section (1) and the criteria to be followed by the employer of industrial establishment under sub-section (2) of section 14-

(1). The matters pertaining to workers which the negotiating union or the negotiating council, as the case may be, shall negotiate with the employer of the industrial establishment under sub-section (1) of section 14 are specified, as below: -

- (a) classification of grades and categories of workers;
- (b) order passed by an employer under the standing orders applicable in the industrial establishment;
- (c) wages of the workers including their wage period, dearness allowance, bonus, increment, customary concession or privileges, compensatory and other allowances;
- (d) hours of work of the workers, rest days, number of working days in a week, rest intervals, working of shifts;
- (e) leave with wages and holidays;
- (f) promotion and transfer policy and disciplinary procedures;
- (g) quarter allotment policy for workers;
- (h) safety, health and working conditions and related standards;
- (i) such matters pertaining to conditions of service and terms of employment of the workers which are not covered in the foregoing clauses; and
- (j) any other matter which is agreed between employer of the industrial establishment and negotiating union or negotiating council, as the case may be.

(2). In case where an industrial establishment has only one registered Trade Union, the employer of such industrial establishment shall recognize such registered Trade union as sole negotiating union, only if at the time of initiation of negotiation, 30% or more of the total workers of the industrial establishment is the member of that registered Trade Union.

17. Manner of verification of workers on the muster roll of the industrial establishment, under sub-sections (3) and (4) and the facilities to be provided by industrial establishment to a negotiating union or negotiating council under sub-section (7) of section 14-

(1). the verification of workers on the muster roll of the industrial establishment, under sub-sections (3) and (4) of Section 14 Shall be made in presence of authority not below the rank of Joint Labour Commissioner, as notified by State Government of the concerned area.

(2). The employer of the industrial establishment shall provide reasonable space for negotiation to the recognized negotiating union or negotiating council, as the case may be.

(3) The Labour Resources and Migrant Workers Welfare Department may, by notification issued in the Official Gazette, prescribe such further guidelines and procedures as may be necessary for the manner of verification of workers on the muster roll of the industrial establishment, under sub-sections (3) and (4) and the facilities to be provided by industrial establishment to a negotiating union or negotiating council under sub-section (7) of section 14.

18. The objects under sub-section (1) and sub-section (2) and the subscription payable under sub-section (4) of section 15-

(1) The general funds of a registered Trade Union shall not be spent on any other objects than the following, namely: -

(a) the payment of salaries, allowances and expenses to office-bearers of the Trade Union;

(b) the payment of expenses for the administration of the Trade Union, including audit of the accounts of the general funds of the Trade Union;

(c) the prosecution or defence of any legal proceeding to which the Trade Union or any member thereof is a party, when such prosecution or defence is undertaken for the purpose of securing or protecting any rights of the Trade Union as such or any rights arising out of the relations of any member with his employer or with a person whom the member employs;

(d) the conduct of industrial disputes on behalf of the Trade Union or any member thereof;

(e) the compensation of members for loss arising out of industrial disputes;

(f) allowances to members or their dependents on account of death, old age, sickness, accidents or unemployment of such members;

(g) the issue of, or the undertaking of liability under, policies of assurance on the lives of members, or under policies insuring members against sickness, accident or unemployment;

(h) the provision of educational, social or religious benefits for members (including the payment of the expenses of funeral or religious ceremonies for deceased members) or for the dependents of members;

(i) the upkeep of a periodical published mainly for the purpose of discussing questions affecting employers or workmen as such;

(j) the payment, in furtherance of any of the objects on which the general funds of the Trade Union may be spent, of contributions to any cause intended to benefit workmen in general, provided that the expenditure in respect of such contributions in any financial year shall not at any time during that year be in excess of one-fourth of the combined total of the gross income which has up to that time accrued to the general funds of the Trade Union during that year and of the balance at the credit of those funds at the commencement of that year; and

(k) subject to any conditions contained in the notification, any other object notified by the State Government in the official Gazette.

(2) For the purpose of sub-section (4) of section 15, provision of rule 8 shall be applied.

19. Manner of making application for adjudication before the Tribunal under sub-section (1) of section 22- For the purpose of Sub-Section (1) of Section 22, the application for adjudication before the Tribunal shall be made in Form VIII. The mode of making application before the Tribunal shall be decided by the State Government through Gazette notification.

20. Manner of amalgamation under sub-section (2), and the manner of sending signed amalgamation to the Registrar of a different State under sub-section (3) of section 24-

(1). On receipt of a notice of amalgamation under sub-section (3) of section 24, if the head office of the amalgamated trade union is in the State or Bihar, the Registrar shall consult the Registrars of trade unions in other state so amalgamating if any, before registering the amalgamated trade union under sub-section (6) of Section 24.

(2). When the amalgamated trade union is registered under sub-section (6) of Section 24, it shall be assigned a number in the register in Form VII and the Registrar shall issue a new certificate in Form VI therefor. He shall also note the fact of amalgamation against the entries, if any, relating to the trade unions so amalgamated in the register in Form VII and send intimation of the registration of the amalgamated union to the Registrars of the trade unions so amalgamated in other State, if any.

21. Distribution of funds of the Trade Union on dissolution by Registrar under sub-section (2) of section 25-Where it is necessary for the Registrar, under sub-section (2) of section 25, to distribute the funds of a trade union which has been dissolved. He shall divide the funds in proportion to the amounts contributed by the members on roll at the time of dissolution by way of subscription to the several funds of the trade union during their membership. In the event of the death of a member of a trade union subsequent to the date of its dissolution but prior to the distribution of funds, the Registrar shall pay the sum payable to such member to his legal dependents.

22. The date before which a general statement shall be forwarded annually to the Registrar, the particulars to be contained in general statement and its Form, the person by whom and the manner in which such general statement shall be audited under clause (a) of sub-section (1) of section 26-The annual return to be furnished under section 26 shall be submitted electronically to the Registrar by the 31st day of July in each year and shall be in Form IX.

23. Manner and purpose of recognition of a Trade Union or a federation of Trade Unions by the State Government as a State Trade Union at the State level and the authority and the manner of deciding dispute by it under sub-section (2) of section 27-

(1). The State Government may recognize any Trade Union or federation of Trade union as State Trade Union if the Trade union or Federation of Union has at least a combined verified membership of Twenty-Five Thousand or more and the membership presence is in at least four types of industries in the State. The registrar may verify the members of State Trade Union in such manner as it thinks fit including Aadhar identification. The Labour Resources and Migrant

Workers Welfare Department may, by notification issued in the Official Gazette, prescribe such further guidelines and procedures as may be necessary for the recognition of any Trade Union or Federation of Trade Unions as a State Trade Union.

(2). The State Government may give preference to those Trade Union which are recognized as State Trade Union for the purpose of constitution of any tripartite forum formed under the provision of different codes or otherwise.

(3). In case of any dispute in relation to the recognition of State Trade Union, the Tribunal constituted in the Capital of the State under the provision of the said code, shall be the final authority for adjudicating the dispute.

Chapter IV

STANDING ORDERS

24. Forwarding of information to certifying officer under sub-section (3) of section 30.- (1)

If the employer adopts the model standing orders of the Central Government referred to in section 29 with respect to matters relevant to his industrial establishment or undertaking, then, he shall intimate the concerned certifying officer electronically or in person or by speed post or by registered post the specific date from which the provisions of the model standing orders which are relevant to his establishment or undertaking have been adopted.

(2) The Model Standing Order adopted under sub-rule (1) shall apply to all the units of the industrial establishment within the country, which has adopted the model standing order

(3) On receipt of information under sub-rule (1), the certifying officer shall enter the details of the industrial establishment which has adopted the Model Standing Order in the register maintained under rule 31. In the event, the certifying officer observes that the industrial establishment which has intimated adoption of model standing orders is also engaged in activities other than for which model standing orders have been adopted then, he shall within a period of thirty days from such receipt of intimation of model standing orders so adopted may give his observation, if any, that the employer is required to include or adopt certain provisions which are relevant to his industrial establishment and indicate those relevant provisions and direct the employer of the industrial establishment that he shall, within a period of thirty days from the date of the receipt of such direction comply with the direction and send compliance report only in respect of those provisions which the certifying officer observes to get included. The provisions of the model standing orders so adopted shall remain in force with effect from the date specified in sub-rule (1).

(4) If no observation is made by certifying officer within a period of thirty days of the receipt of the information as specified in sub-rule (1) then, the standing order shall be deemed to have been certified by the certifying officer.

Explanation- For removal of doubt, it is clarified that certifying officer shall not raise any observation in the event the industrial establishment is engaged in activities which are wholly covered by the activities of the industrial establishment to which the standing orders apply.

25. Choosing of representatives of workers of the industrial establishment or undertaking for issuing notice by certifying officer where there is no Trade Union under clause (ii) of sub-section (5) of section 30. –

(1) Where there is no such Trade Union as is referred to in clause (i) of said sub-section (5) of section 30, then, the certifying officer or any authorized officer in his behalf, shall call a meeting of the workers to elect three representatives, to whom he shall, upon, their being elected issue notice with a copy of the standing order or modification, as the case may be requiring comments, if any, which the workers may desire to make to the draft standing orders to be submitted within fifteen days from the receipt of the notice.

(2) Trade Union or negotiating union or constituent of negotiating council shall be given a copy of the draft standing orders or modification, as the case may be, in English as well as the translation thereof in the hindi seeking their comments, if any, within fifteen days from the date of the receipt of the notice.

26. Authentication of certified standing orders under sub-section (8) of section 30.- Standing orders or modification in the standing orders –

(i) certified in pursuance of sub-section (8) of section 30; or

(ii) the copy of the said standing order or modification thereof referred to in sub-section (i) of section 33, shall be authenticated by the certifying or the appellate authority, as the case may be, and shall be sent electronically and a hard copy by registered post or speed post within a week from the date of such authentication to all concerned that is to say the employer and all the registered Trade Unions or elected representative of workers:

Provided that there shall not be any requirement of certification in cases of deemed certification under sub-section (3) of section 30 and in cases where the employer has certified adoption of model standing orders.

27. Statement to be accompanied with draft standing orders under sub-section (9) of section 30-

(a) The statement to be accompanied with a draft standing order shall contain, the particulars such as name of the industrial establishment or undertaking concerned, address, email address, contact number and the strength and details of workers employed therein including particulars of Trade Union, if any, to which such workers belong.

(b) The statement to be accompanied with a draft modification in an existing standing order, shall contain the particulars of such standing order which is proposed to be modified along with a tabular statement containing details of each of the relevant provision of that standing order in force and the proposed modification therein and reasons therefor.

(c) The statement referred to in sub-rules (1) and (2) shall be signed by a person authorized by the industrial establishment or undertaking.

(d) The model standing orders, if modified, shall also apply to all the units of the industrial establishment or undertaking in the country.

28. Conditions for submission of draft standing orders in similar establishment under sub-section (10) of section 30.- In case of group of employers engaged in similar industrial establishments, they may submit a joint draft standing orders under section 30 and for the

purpose of proceedings specified in sub-sections (1), (5), (6), (8) and (9) thereof after consultation with the concerned Trade Union:

Provided that the joint draft standing orders, in cases of group of employers engaged in similar industrial establishments, will be drafted and submitted to the authority notify the State Government who shall, in consultation with the concerned certifying officers, certify or refuse to certify the said joint draft standing orders, after recording reasons therefor:

Provided that certifying officer shall give notice to all the concerned parties, and ensure reasonable opportunity of hearing before certifying the standing orders.

29. Disposal of appeal by appellate authority under section 32.-

(1) An employer or Trade Union or the negotiating union or negotiating council, or where there is no negotiating union or negotiating council in an industrial establishment or undertaking, any union or such representative body of the workers of the industrial establishment or undertaking, may prefer an appeal against the order of the certifying officer made under sub-section (5) of section 30 within sixty days of the receipt of such order, and for that purpose draw up a memorandum of appeal in a tabular form stating therein the provisions of the standing orders which are required to be altered or modified or deleted or added along with the reasons therefor, and file it electronically or in person with the appellate authority.

(2) The appellate authority shall fix a date for the hearing of the appeal and direct notice thereof to be given –

- (a) where the appeal is filed by the employer, to Trade Union or the negotiating union or negotiating council, as the case may be, or where there is no negotiating union or negotiating council in an industrial establishment or undertaking, any union or such representative body of the workers of the industrial establishment or undertaking;
- (b) where the appeal is filed by a Trade Union or the negotiating union or negotiating council, to the employer and the negotiating union or the negotiating council or all other Trade Unions of the workers of the industrial establishment, as the case may be, or where there is no negotiating union or negotiating council in an industrial establishment or undertaking, any union or such representative body of the workers of the industrial establishment or undertaking; and
- (c) where the appeal is filed by a representative body of the workers, to the employer and other Trade Unions of the workers of the industrial establishment, or where there is no trade union of the workers in an industrial establishment or undertaking, any other worker who joins as a party to the appeal.

(3) The appellant shall furnish each of the respondents with a copy of the memorandum of appeal referred to in subrule (1).

(4) The appellate authority may at any stage of the proceeding call for any evidence, if it considers necessary for the disposal of the appeal.

(5) On the date fixed under sub-rule (2) for the hearing of the appeal, the appellate authority shall take such evidence as it may have called for or considers relevant, if produced, and after hearing the parties, dispose of the appeal.

30. Sending of order and maintaining of standing orders under sub-sections (1) and (2) of section 33- (1) The order of the appellate authority shall be sent electronically or otherwise to the worker or Trade Union or the negotiating union or negotiating council or any union or representative body of the workers, as the case may be, by whom the appeal has been filed.

(2) The text of the standing orders as finally certified or deemed to have been certified or adopted model standing orders under this Chapter shall be maintained by the employer in Hindi or in English and in the language understood by majority of workers where the industrial establishment is situated. These certified standing orders shall be displayed on the special board to be maintained for the purpose at the entrance or near the entrance through which majority of workers enter the industrial establishment.

31. Register for final certified copy of standing orders under section 34.-

(1) The certifying officer shall maintain electronically, a register in **Form-X**, of all standing orders certified or deemed to have been certified or adopted model standing orders of all the concerned industrial establishments, inter-alia, containing the details of –

- (a) the unique number assigned to each standing orders;
- (b) name of industrial establishment;
- (c) nature of industrial establishment;
- (d) date of certification or deemed certification or date of adoption of model standing orders by each establishment or undertaking;
- (e) the areas of the operation of the industrial establishment; and
- (f) such other details as may be relevant and helpful in retrieving the standing orders and create a data base of such of all standing orders.

(2) The certifying officer shall furnish a copy of the certified standing orders or deemed certified standing orders to any person applying there for on payment of such rate as notified by the State Government of the certified standing orders or deemed certified standing orders, as the case may be. The payment for such purpose can also be made through electronic mode.

32. Application for modification of standing orders under sub-section (2) of section 35. - The application for modification of an existing standing orders under sub-section (2) of section 35 shall be submitted electronically or in person or by registered post or speed post and contain the particulars of such standing orders which are proposed to be modified along with a tabular

statement containing details of each of the relevant provisions of standing order in force, and proposed modifications therein, reasons thereof and the details of registered Trade Unions operating therein, and such statement shall be signed by a person authorized by the industrial establishment or undertaking or workers or a Trade Union or other representative body of the workers, as the case may be, who has submitted such application for modification.

CHAPTER-V

NOTICE OF CHANGE

33. Notice for change proposed to be effected under clause (i) of section 40.-

(1) Any employer intending to effect any change in the conditions of service applicable to any worker in respect of any matter specified in the Third Schedule to the Code, shall give notice in **Form-XI** electronically or otherwise to such workers likely to be affected by such change. Such notice may also be posted on the designated portal of the industrial establishment, if any.

(2) The notice referred to in sub-rule (1) shall be displayed conspicuously by the employer on the notice board or on the electronic notice board at the main entrance of the industrial establishment:

Provided that when there is a registered Trade Union or registered Trade Unions or a negotiating union or negotiating council relating to the concerned industrial establishment, a copy of such notice shall also be served electronically or otherwise, to the Secretary of such Trade Union or each of the Secretaries of such Unions, or Secretary of the negotiating union or constituent of negotiating council, as the case may be.

Chapter VI

VOLUNTARY REFERENCE OF DISPUTES TO ARBITRATION

34. Form of arbitration agreement and the manner thereof under sub-section (3) of section 42. -

(1) Where the employer and workers agree to refer the dispute to arbitration, the Arbitration Agreement shall be in **Form-XII** and shall be signed by the parties to the agreement. Such agreement shall be accompanied by the consent, either in writing or electronically, of arbitrator or arbitrators.

(2) The Arbitration Agreement referred to in sub-rule (1) shall be signed, -

(i) in case of an employer, by the employer himself, or when the employer is an incorporated company or other body corporate, by the agent, manager or other officer of the corporation authorized for such purpose;

(ii) in the case of the workers by the officer of the registered Trade Union authorized in this behalf or by five representatives of the workers duly authorized in this behalf at a meeting of the concerned workers held for such purpose;

(iii) in the case of an individual worker, by the worker himself or by an officer of registered Trade Union of which the worker is a member or by another worker in the same establishment duly authorized by him in this behalf:

Explanation- For a purpose of this Rule the expression “officer” -

- (1) in case of an association of the employees means any officer of such association of the employers authorized for such purpose; and
- (2) in case of a registered Trade Union, means any of the following officers of such Trade Union authorized for such purpose, namely: -
 - (a) the President;
 - (b) the Vice-President;
 - (c) the Secretary (including the General Secretary);
 - (d) a Joint Secretary; and
 - (e) any other officer of such Trade Union authorized in this behalf by the President and Secretary of such union.

35. Issuing of notification under sub-section (5) of section 42.- Where an industrial dispute has been referred to arbitration and the State Government is satisfied that the persons making the reference represent the majority of each party, it shall publish a notification in this behalf in the Official Gazette and on the website of the Labour Resources and Migrant Works Welfare Department, for the information of the employers and workers who are not parties to the arbitration agreement but are concerned in the dispute and they may present their case before the arbitrator or arbitrators appointed for such purpose.

36. Choosing of representatives of workers where there is no Trade Union under sub-section (5) of section 42.- Where there is no Trade Union, the representative of workers to present their case before the arbitrator or arbitrators in pursuance of clause (c) of the proviso to sub-section (5) of section 42, shall be chosen by a resolution passed by the majority of concerned workers in **Form-XIII** authorizing therein to represent the case. Such workers shall be bound by the acts of representatives who have been authorized to represent before the arbitrator or arbitrators, as the case may be.

CHAPTER-VII

MECHANISM FOR RESOLUTION OF INDUSTRIAL DISPUTE

37. Filling up of the vacancy under sub-section (9) of Section 44 and procedure for selection, salaries and allowances and other terms and condition of Judicial Member of the Industrial Tribunal under sub-section (5) of Section 44-

(1) The Judicial member of the Industrial Tribunal shall be appointed by the State Government on the recommendation of a Search Cum Selection Committee (SCSC) specified in sub-rule (2).

Provided that the Judicial members of the Industrial Tribunal shall be appointed from serving and retired Judges of High Court, members of higher Judicial services and members of State Judicial Services, who has been a District Judge or Additional District Judge for not less than three years: Provided that at any time total number of Judicial members shall not exceed fifty percent of the total number of Judicial and Administrative members of Tribunals in the State.

(2) The Search Cum Selection Committee shall comprise of the following members, namely: -

- (i) Chief Justice of Bihar or a Judge of High Court nominated by him - Chairperson;
- (ii) Sitting Judicial Member of the other Industrial Tribunal - Member;
- (iii) Chief Secretary, Bihar or an officer nominated by him - Member

(iv) Additional Chief Secretary/ Principal Secretary/ Secretary, - Member Secretary; and
Labour Resource and Migrant Workers Welfare Department

(v) Labour Commissioner, Bihar - Member

(3) The Search-cum-Selection Committee (SCSC) shall determine its procedure for making its recommendation and, after taking into account qualification, suitability, record of past performance, integrity as well as adjudicatory experience keeping in view of the requirement of the Industrial Tribunal recommend a panel of two or three persons as it deems fit for appointment to each post.

(4) No appointment of a Judicial Member shall be declared invalid merely by reason of a vacancy or absence of any member in the Search-cum-Selection Committee.

(5) A Judicial Member shall hold office for a term of four years from the date on which he enters upon his office or till he attains the age of sixty-five years, whichever is earlier.

(6) In case of casual vacancy in the office of Judicial Member, the State Government shall appoint the Judicial Member of the other Industrial Tribunal to officiate as Judicial Member.

(7) (a) A Judicial Member shall be paid a salary as notified by the State Government from time-to-time and shall be entitled to draw allowances as are admissible to an officer of the Government of India holding Group A post carrying the same pay.

(b) In case of appointment of retired High Court Judge, his pay shall be reduced by the gross amount of pension drawn by him.

(8) In case of retired High Court Judges, they shall be entitled to join Contributory Provident Fund Scheme as per rules during the period of their re-employment and additional gratuity shall not be paid for the service rendered in the Industrial Tribunal.

(9) A Judicial Member shall be entitled for rent free furnished accommodation or house rent allowance at the rate as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(10) The State Government shall be the leave sanctioning authority for the Judicial Member.

(11) Health facilities equivalent to Central Government Health facilities as admissible to an officer of the Government of India holding Group A post carrying the same pay shall be applicable.

(12) (a) Travelling allowance to a Judicial member shall be admissible as per entitlement of an officer of the Government of India holding Group A post carrying the same pay.

(b) In case of retired High Court Judges, transfer travelling allowance for joining the Industrial Tribunal from home town to head quarter and vice-versa at the end of assignment shall also be admissible as entitlement of an officer of the Government of India holding Group A post carrying the same pay.

(13) A Judicial Member shall be entitled for leave travel concession as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(14) A Judicial Member shall be entitled for transport allowance as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(15) No person shall be appointed as Judicial Member unless he is declared medically fit by an authority specified by the State Government in this behalf.

(16) (a) If a written and verifiable complaint is received by the State Government, alleging any definite charge of misbehavior or incapacity to perform the functions as Judicial Member, it shall make a preliminary scrutiny of such complaint.

(b) If on preliminary scrutiny, the State Government is of the opinion that there are reasonable grounds for making an inquiry into the truth of any misbehaviour or incapacity of a Judicial Member, it shall make a reference to the Search-Cum-Selection Committee to conduct the inquiry.

(c) The Search-Cum-Selection Committee shall complete the inquiry within six months time or such further time as may be specified by the Central Government.

(d) After conclusion of the inquiry, the Search-Cum-Selection Committee shall submit its report to the State Government stating therein its findings and the reasons therefor on each of the charges separately with such observations on the whole case as it may think fit.

(e) The Search-Cum-Selection Committee shall not be bound by the procedure laid down by the (Code on Civil Procedure, 1908) but shall be guided by the principles of natural justice and shall have power to regulate its own procedure, including the fixing of date, place and time of its inquiry.

(17) A Judicial Member may, resign his office at any time by giving notice to this effect in writing under his hand addressed to the State Government:

Provided that the Judicial Member shall, unless he is permitted by the State Government to relinquish office sooner, continue to hold office until the expiry of three months from the date of receipt of such notice or until a person duly appointed as a successor enters upon his office or until the expiry of his term of the office, whichever is earlier.

(18) The State Government shall, on the recommendation of Search-Cum-Selection Committee, remove from office any Judicial Member, who, -

(a) has been adjudged as an insolvent; or

- (b) has been convicted of an offence which, involves moral turpitude; or
- (c) has become physically or mentally incapable of acting as such a Judicial Member; or
- (d) has acquired such financial or other interest as is likely to affect prejudicially his functions as a Judicial Member; or
- (e) has so abused his position as to render his continuance in office prejudicial to the public interest:

Provided that where a Judicial Member is proposed to be removed on any ground specified in clauses (b) to (e), he shall be informed of the charges against him and given an opportunity of being heard in respect of those charges.

(19) Every person appointed as Judicial Member shall, before entering upon his office, make and subscribe an oath of office and secrecy in the Form-XIV annexed to these rules.

(20) Matter relating to the terms and conditions of services of the Judicial Member with respect to which no express provisions have been made in these rules, shall be referred by the Industrial Tribunal to the State Government for its decision, and the decision of the State Government thereon shall be binding.

(21) The State Government shall have power to relax the provision of any of these rules in respect of any class or categories of persons for the reasons to be recorded in writing.

38. Filling up of the vacancy under sub-section (9) of Section 44 and procedure for selection, salaries and allowances and other terms and condition of Administrative Member of the Industrial Tribunal under sub-section (5) of Section 44-

(1) The Administrative Member shall be appointed by the State Government on the recommendation of a Search Cum Selection Committee (SCSC) specified in sub-rule (2) of this rule.

Provided that Administrative members of the Industrial Tribunal shall be appointed from the serving or retired members of Indian Administrative Services who has served at least three years in this service or from Bihar Labour Services having experience of dispensation for a period of at least five years of Judicial/ Quasi-Judicial work and has been an Additional/ Joint Labour Commissioner:

Provided that, if in future State Government increases the number of Industrial Tribunals in the State, the vacancies shall be filled in the above-mentioned proportion:

Provided that the total number of administrative members appointed amongst the members of Indian Administrative Services shall not exceed at any time fifty percent of the total number of administrative members of the Industrial Tribunal in the State and the rest of vacancies of administrative members shall be filled from the serving or retired Additional/ Joint Labour Commissioner of State Labour Services.:

(2) The Search Cum Selection Committee shall comprise of the following members, namely: -

- (i) Chief Justice of Bihar or a Judge of High Court nominated by him-Chairperson;
- (ii) Sitting Member of the other Industrial Tribunal – Member;
- (iii) Chief Secretary, Bihar or an officer nominated by him – Member;

(iv) Additional Chief Secretary/Principal Secretary/ Secretary to the Government of Bihar, Labour Resources and Migrant Works Welfare Department – Member secretary; and

(v) Labour Commissioner, Bihar - Member,

(3) The Search-cum-Selection Committee (SCSC) shall determine its procedure for making its recommendation and, after taking into account qualification, suitability, record of past performance, integrity as well as experience keeping in view of the requirement of the Industrial Tribunal and recommend a panel of two or three persons as it deems fit for appointment to said post.

(4) No appointment of Administrative Member shall be declared invalid merely by reason of one vacancy or absence of any Member in the Search-cum-Selection Committee.

(5) An administrative Member shall hold office for a term of four years or till he attains the age of sixty five years, whichever is earlier.

(6) In case of casual vacancy in the office of Administrative Member, the State Government shall appoint the Administrative Member of the other Industrial Tribunal to officiate as Administrative Member.

(7) (a) The Administrative Member shall be paid a salary as notified by the State Government from time-to-time and shall be entitled to draw allowances as are admissible to an officer of the Government of India holding Group A post carrying the same pay.

(b) In case of retired Government Officer, his pay shall be reduced by the gross amount of pension drawn by him.

(8) (a) In case of serving Government Officer, the service rendered in Industrial Tribunal shall be counted for pension to be drawn in accordance with the extant rules of the service which he belong and shall be governed by General Provident Fund Rules (Central Service), 1960.

(b) In case of retired Government Officers, they shall be entitled to join Contributory Provident Fund Scheme as per extant rules during period of their re-employment. Additional gratuity shall not be admissible for the service rendered by the Administrative Member in the Industrial Tribunals.

(9) Administrative Member shall be entitled for rent free furnished accommodation or house rent allowance at the rate as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(10) (a) In case of serving Government Officer, leave shall be admissible in accordance with the extant rules of the service which he belongs.

(b) In case of retired Government Officers, leave shall be admissible as are admissible to an officer of the Government of India holding a post carrying the same pay.

(11) (a) The State Government shall be the leave sanctioning authority for the Member.

(b) The State Government shall be the sanctioning authority for foreign travel to the Administrative Member.

(12) Health facilities equivalent to Central Government Health facilities as admissible to an officer of the Government of India holding Group A post carrying the same pay shall be applicable.

(13) (a) Travelling allowance to an Administrative Member shall be admissible as per entitlement an officer of the Government of India holding Group A post carrying the same pay.

(b) In case of retired Government Officer, transfer travelling allowance for joining the Industrial Tribunal from home town to head quarter and vice-versa at the end of assignment shall also be admissible as entitlement of an officer of the Government of India holding Group A post carrying the same pay.

(14) An Administrative Member shall be entitled for leave travel concession as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(15) An Administrative Member shall be entitled for transport allowance as admissible to an officer of the Government of India holding Group A post carrying the same pay.

(16) No person shall be appointed as an Administrative Member, unless he is declared medically fit by an authority specified by the State Government in this behalf.

(17) (a) If a written and verifiable complaint is received by the State Government, alleging any definite charge of misbehaviour or incapacity to perform the functions as Administrative Member, it shall make a preliminary scrutiny of such complaint.

(b) If on preliminary scrutiny, the State Government is of the opinion that there are reasonable grounds for making an inquiry into the truth of any misbehaviour or incapacity of an Administrative Member, it shall make a reference to the Search-Cum-Selection Committee to conduct the inquiry.

(c) The Search-Cum-Selection Committee shall complete the inquiry within six months time or such further time as may be specified by the State Government.

(d) After conclusion of the inquiry, the Search-Cum-Selection Committee shall submit its report to the State Government stating therein its findings and the reasons therefor on each of the charges separately with such observations on the whole case as it may think fit.

(e) The Search-Cum-Selection Committee shall not be bound by the procedure laid down by the Code of Civil Procedure, 1908 (5 of 1908) but shall be guided by the principles of natural justice and shall have power to regulate its own procedure, including the fixing of date, place and time of its inquiry.

(18) An Administrative Member may, resign his office at any time by giving notice to this effect in writing under his hand addressed to the State Government:

Provided that the Administrative Member shall, unless he is permitted by the State Government to relinquish office sooner, continue to hold office until the expiry of three months from the date of receipt of such notice or until a person duly appointed as a successor enters upon his office or until the expiry of his term of the office, whichever is earlier.

(19) The State Government shall, on the recommendation of the Search-Cum-Selection Committee, remove from office any Administrative Member, who-

(a) has been adjudged as an insolvent; or

(b) has been convicted of an offence which, involves moral turpitude; or

(c) has become physically or mentally incapable of acting as such Member; or

(d) has acquired such financial or other interest as is likely to affect prejudicially his functions as an Administrative Member; or

(e) has so abused his position as to render his continuance in office prejudicial to the public interest: Provided that where an Administrative Member is proposed to be removed on any ground specified in clauses (b) to (e), he shall be informed of the charges against him and given an opportunity of being heard in respect of those charges.

(20) Every person appointed as Administrative Member shall, before entering upon his office, make and subscribe an oath of office and secrecy in the Form-XIV annexed to these rules.

(21) Matter relating to the terms and conditions of services of the Administrative Member with respect to which no express provisions has been made in these rules, shall be referred by the Industrial Tribunal to the State Government for its decision, and the decision of the State Government thereon shall be binding.

(22) The State Government shall have power to relax the provision of any of these rules in respect of any class or categories of persons for the reasons to be recorded in writing.

39. Holding of conciliation proceedings under sub-section (1), full report under sub-section (4), and application and the manner of deciding such application under sub-section (6) of section 53.-

(1) Where the conciliation officer receives any—

(a) notice of a strike or lockout given under rule 42 or rule 43; or

(b) application in respect of an existing industrial dispute; or

(c) information regarding apprehended industrial dispute,

then, he shall—

(i) in case of clause (a), enter the details on the designated portal or otherwise and hold conciliation proceedings and inform the concerned parties the date of sitting for such purpose;

(ii) in case of clause (b), enter the details on the designated portal or otherwise and examine the application and if he finds that such dispute pertains to the jurisdiction of State Government, transfer the application to the concerned authority or otherwise proceed with the application and hold the conciliation in respect thereof; and

(iii) in case of clause (c), enter the details on the designated portal or otherwise and issue a fresh notice to the parties concerned declaring his intention to commence conciliation proceedings.

(2) The employer's representative and the worker's representative shall, on receipt of the notice referred to in sub-rule (1), submit their respective statements in respect of the said dispute in the first meeting of the conciliation proceedings.

(3) The conciliation officer shall, without delay, ascertain the facts and circumstances relating to the dispute and enquire into all matters affecting the merits and right settlement thereof and hold conciliation proceedings between the parties to the dispute and may do all such things as he thinks fit for the purpose of inducing the parties to come to a fair and amicable settlement of the dispute.

(4) If no settlement is arrived at in the conciliation proceedings referred to in sub-rule (3), the conciliation officer shall, within seven days from the date on which the conciliation proceedings are concluded, upload a report on designated portal and forward a copy thereof through electronic mode or by registered post or speed post or in person to the parties to the dispute and to the appropriate Government. The report shall be made accessible to the parties concerned on the said designated portal.

(5) If a settlement of the dispute or of any of the matters in dispute is arrived at in the course of the conciliation proceedings, the conciliation officer shall, apart from submitting a report thereof to the appropriate Government or an officer authorized in this behalf by that Government along with a memorandum of the settlements signed by the parties to the dispute, also upload such report and memorandum of settlement on the designated portal.

(6) The report referred to in sub-rule (4) shall, inter alia, contain the submissions of the employer, worker or Trade Union, as the case may be, involved in the dispute and it shall also contain the efforts made by the conciliation officer to bring the parties to an amicable settlement, reasons for refusal of the parties to resolve the dispute and the conclusion arrived at by the conciliation officer.

(7) All the evidences before the conciliation officer, except the documentary evidence, shall be filed in the form of affidavit and the parties to the dispute shall also file the application or, as the case may be, reply or rejoinder thereof in the form of an affidavit.

40. Proceedings before Tribunal.- (1) Any dispute which is not settled during the conciliation proceedings, then, either of the concerned party may make an application in **Form-XV**, before the Tribunal through an on-line application or through portal of the Labour Resources and Migrant Works Welfare Department or registered post or speed post or in person within ninety days from the date of the report under sub-rule (4) of rule 39.

(2) On receipt of the application referred to in sub-rule (1), the Tribunal shall direct the party raising the dispute to file a statement of claim with complete details along with relevant documents, list of supporting documents and witnesses within thirty days from the date on which application is filed. A copy of such statement may be sent electronically or uploaded on the portal of the Labour Resources and Migrant Works Welfare Department or through registered post or by speed post for service on each of the opposite parties in the dispute.

(3) The Tribunal, after ascertaining that the copies of statement of claim and other related documents are furnished to the other side by the party raising the dispute, shall fix the first hearing as soon as possible and within a period of one month from the date of receipt of the application. The opposite party or parties shall file their written statement together with supporting documents and the list thereof and list of witnesses, if any, within a period of thirty days from the date of first hearing and simultaneously forward a copy thereof to the opposite party or parties for service.

(4) Where the Tribunal finds that the party raising the dispute, despite its directions, did not forward the copy of the statement of claim and other documents to the opposite party or parties, it shall give directions to the concerned party to furnish the copy of the statement to the opposite party or parties, granting extension of fifteen days for filing the statement, if the Tribunal finds sufficient cause for not filing the statement of claim and other documents within time.

(5) Evidence shall be recorded either in Tribunal or, as the case may be, may be filed on affidavit or recorded in the Tribunal on oath, but in the case of affidavit the opposite party shall have the right to cross-examine each of the deponents filing the affidavit. Where the oral examination of each witness proceeds, the Tribunal as the case may be, shall make a memorandum of the substance of what is being deposed and while recording the oral evidence the Tribunal shall follow the procedure laid down in rule 5 of Order XVIII of the First Schedule to the Code of Civil Procedure, 1908 (5 of 1908).

(6) On completion of evidence, arguments may be heard immediately or a date may be fixed for arguments, which shall not be beyond a period of fifteen days from the closure of evidence.

(7) The Tribunal as the case may be, shall not ordinarily grant an adjournment for a period exceeding a week at a time, but not in any case more than three adjournments in all, at the instance of the parties to the dispute, shall be granted:

Provided that the Tribunal as the case may be, for reasons to be recorded in writing, grant an adjournment exceeding a week at a time but not in any case more than three adjournments, at the instance of any one of the parties to the dispute, shall be granted.

(8) A Tribunal or Arbitrator may at any time correct any clerical or arithmetical mistake or error arising from an accidental slip or omission in any proceedings, report, award or decision either of its or his own motion or on application of any of the parties.

(9) In case any party defaults or fails to appear at any stage, the Tribunal as the case may be, may proceed with the case ex-parte, and decide the application or reference, as the case may be, in the absence of the defaulting party:

Provided that the Tribunal or may on the application of either party filed before the submission of the award, revoke the order that the case shall proceed ex- parte, if it is satisfied that the absence of the party was on justifiable grounds, and proceed further to decide the matter as contested.

(10) The Tribunal, as the case may be, shall communicate its award electronically or through registered post or speed post to the parties concerned and the State Government and upload on the portal of Labour Resources and Migrant Works Welfare Department within one month from the date of the pronouncement of the award.

(11) The Tribunal may summon and examine any person whose evidence appears to it to be material for deciding the case and shall be deemed to be a civil court within the meaning of sections 345, 346 and 348 of the Code of Criminal Procedure, 1973 (1 of 1974).

(12) Where assessors are appointed to advise a Tribunal under sub-section (5) of section 49 in relation to proceeding before it, the Tribunal shall obtain the advice of such assessors, but such advice shall not be binding on such Tribunals.

(13) A party in an award, who wants to obtain a copy of the award or other document, may obtain a copy of the award or other document after depositing the fee electronically or by bank draft in the Tribunal, as the case may be, in the following manner, namely: -

- (a) fee for obtaining a copy of an award or the document filed in any proceedings of Tribunal be charged at the rate of rupees two per page;
- (b) for certifying a copy of any such award or order or document, a fee of rupees two per page shall be payable;
- (c) copying and certifying fees shall be payable electronically;
- (d) where a party applies for immediate delivery of a copy of any such award or document, an additional fee equal to one-half of the fee leviable under this rule shall be payable.

(14) The representatives of the parties appearing before a Tribunal or an Arbitrator shall have the right of examination, cross-examination and of addressing the Tribunal or National Industrial Tribunal or an Arbitrator when evidence has been called.

(15) The proceedings before Tribunal shall be held in open court:

Provided that the proceedings before the Tribunal may be at the request of the parties or of the directions of the Tribunal or National Tribunal, as the case may be, held by video conferencing:

Provided further that Tribunal or National Industrial Tribunal may, at any stage of the proceeding direct that any witness shall be examined, or its proceedings be held, in-camera.

(16) A conciliation officer, Judicial Member or Administrative Member of the Tribunal or any person authorized in writing by the conciliation officer, Tribunal or National Tribunal in this behalf may, for the purposes of any conciliation or adjudication under the Code at any time between the hours of sunrise and sunset and in the case of person so authorized after giving reasonable notice in writing, may enter any building, factory, workshop, or other place or premises whatsoever, and inspect the same or any work, machinery, appliance or article therein

or interrogate any person therein in respect of anything situated therein or any matter relevant to the subject matter of conciliation or adjudication, as the case may be.

(17) A Tribunal may, in the interest of justice and after recording reasons therefor, admit or accept any evidence at any stage of the proceeding before it.

41. Application for recovery of dues under section 59.- (1) Where any money is due from an employer to a worker or a group of workers under a settlement or an award or under the provisions of Chapter IX or Chapter X, the worker or the group of workers, as the case may be, may apply in **Form XVI** for the recovery of the money due:

Provided that in the case of a person authorized in writing by the worker, or in the case of the death of the worker the assignee or heir of the deceased worker, the application shall be made in Form XVII.

(2) Where any worker or a group of workers is entitled to receive from the employer any money or any benefit which is capable of being computed in terms of money, the worker or the group of workers, as the case may be, may apply to the Tribunal having jurisdiction, in **Form XVIII** for the determination of the amount due or, as the case may be, the amount at which such benefit should be computed and such Tribunal shall decide the application within a period not exceeding three months from the date on which the application is filed;

Provided that in the case of the death of a worker, application shall be made in **Form XIX** by the assignee or heir of the deceased worker.

Chapter VIII

STRIKES AND LOCK-OUTS

42. Number of persons by whom the notice of strike shall be given, the person or persons to whom such notice shall be given and the manner of giving such notice under sub-section (4) of section 62. - (1) The notice of strike referred to in sub-section (1) of section 62 shall be given to the employer of an industrial establishment in Form-XX which shall be duly signed by the Secretary and five elected representatives of the registered Trade Union relating to such industrial establishment endorsing the copy thereof electronically to the concerned conciliation officer of the district and Labour Commissioner, Bihar and the date of receipt of such notice by the conciliation officer shall be the date of receiving the notice for the purpose of clause (a) of sub-rule (1) of rule 39.

(2) If the employer of an industrial establishment receives from any person employed by him any notice of strike as referred to in sub-section (1) of section 62 then he shall within five days from the date of receiving of such notice, intimate the same electronically to the concerned conciliation officer and Labour Commissioner, Bihar.

43. Notice of lock-out under sub-section (5) and authority under sub-section (6) of section 62. –

(1) The notice of lock-out referred to in sub-section (2) of section 62 shall be given by the employer of an industrial establishment in Form-XXI to the Secretary of every registered Trade

Union relating to such industrial establishment endorsing a copy thereof to the concerned conciliation officer of the district and Labour Commissioner, Bihar electronically. The notice shall be displayed conspicuously by the employer on a notice board or on electronic board at the main entrance to the industrial establishment. The date of receipt of such notice by the conciliation officer shall be the date of receiving the notice for the purpose of clause (a) of sub-rule (1) of rule 23.

(2) If the employer gives to any person employed by him a notice of lock-out, then he shall within five days from the date of such notice, intimate electronically the same to the concerned conciliation officer of the district and Labour Commissioner, Bihar.

Chapter IX

LAY-OFF, RETRENCHMENT AND CLOSURE

44. Service of notice before retrenchment of the worker under clause (c) of section 70. - If any employer desires to retrench any worker employed in his industrial establishment who has been in continuous service for not less than one year under him then, such employer shall give prior notice of intimation of such retrenchment, in Form-XXII to the Deputy Labour Commissioner of the concerned area electronically or otherwise, in the following manner, namely :-

- (a) where notice is given to a worker, notice of retrenchment shall be sent within three days from the date on which notice is served on the worker;
- (b) where no notice is given to the worker, and he is paid one month's wages in lieu thereof, notice of retrenchment shall be sent within three days from the date on which such wages are paid; and
- (c) where retrenchment is carried out under an agreement which specifies a date for the termination of service, notice of retrenchment shall be sent so as to reach the State Government, and the Deputy Labour Commissioner of concerned area, at least one month before such date.

Provided that if the date of termination of service agreed upon is within thirty days of the agreement, the notice of retrenchment shall be sent to State Government, and the concerned Deputy Labour Commissioner, within three days of the agreement.

45. Manner of giving an opportunity for re-employment to the retrenched workers under section 72.- (1) The employer shall prepare a list of all workers in the particular category from which retrenchment is contemplated, arranged according to the seniority of their service in that category and cause a copy thereof to be pasted on a notice board in a conspicuous place in the premises of the industrial establishment at least seven days before the actual date of retrenchment.

(2) When any vacancy occurs in an industrial establishment and there are workers of such industrial establishment retrenched within one year prior to the proposal for filling such vacancies, then, the employer of such industrial establishment shall, if such workers are citizens of India and have given their willingness for employment, give them preference over other on the basis of their service seniority.

(3) The employer shall arrange for the display on a notice board in a conspicuous place in the premises of the industrial establishment the details of vacancies at least fifteen days before the

date on which such vacancies are to be filled and shall also give intimation of those vacancies by registered post or speed post or through e-mail to every one of all the retrenched workers eligible to be considered therefor, to the latest address or e-mail, given by each of them at the time of retrenchment or at any time thereafter:

Provided that when the number of such vacancies is less than the number of retrenched workers, it shall be sufficient if the intimation is given by the employer individually to the senior most retrenched workers in the list referred to in sub-rule (1) and the number of such senior-most workers being double the number of such vacancies:

Provided further that where the vacancy is of duration of less than one month there shall be no obligation on the employer to send intimation of such vacancy to individual retrenched workers:

Provided also that if a retrenched worker, without sufficient cause being shown in writing to the employer, does not offer himself for re-employment on the date or dates specified in the intimation sent to him by the employer under this sub-rule, the employer may not intimate to him the vacancies that may be filled on any subsequent occasion.

(4) Immediately after complying with the provisions of sub-rule (3), the employer shall also inform the negotiating union or the constituent of negotiating council or Trade Unions connected with the industrial establishment, of the number of vacancies to be filled and names of the retrenched workers to whom intimation has been sent under that sub-rule:

Provided that the provisions of this sub-rule need not be complied with by the employer in any case where intimation is sent to every worker mentioned in the list prepared under sub-rule (1).

46. Service of notice by the employer for intended closure under sub-section (1) of section 74. — If an employer intends to close down an industrial establishment he shall give notice within the time as specified in sub-section (1) of section 74 of such closure in Form-XXII to the State Government and a copy thereof to the concerned authority of concerned area as notified by State Government by e-mail and registered post or speed post. A copy of the notice shall also be sent to the registered Trade Unions or authorised representatives of workers, as the case may be, operation in the Industrial establishments.

Chapter X

SPECIAL PROVISIONS RELATING TO LAY-OFF, RETRENCHMENT AND CLOSURE IN CERTAIN ESTABLISHMENTS

47. Manner of making application to the State Government by the employer for the intended lay-off and the manner of serving copy of such application to workers under sub-section (2) of section 78.— An application for permission under sub-section (1) of section 78 shall be made by the employer in Form- XXIII stating clearly therein the reasons for the intended lay off and a copy of such application shall be served simultaneously to the worker concerned electronically or in person or by registered post or speed post. Such application shall also be displayed conspicuously by the employer on a notice board or on electronic board at the main entrance of the industrial establishment concerned.

48. Application of permission from the State Government to continue the lay-off under sub-section (3) of section 78.— The employer shall in case of an industrial establishment being a

mine specified in sub-section (3) of section 78 where the workers (other than Badli workers or casual workers) have been laid-off under sub-section (1) of section 78 for reasons of fire, flood or excess of inflammable gas or explosion, within a period of thirty days from the date of commencement of such lay-off, make an application to the State Government in Form – XXIII electronically and by registered or speed post with a copy to the concerned authority of concerned area as notified by State Government for permission to continue the lay-off specifying the number of days; intimating the number of workers to be laid off, the total number of workers employed in the industrial establishment, the date of layoff and the reasons for continuation of such lay off.

49. Time-limit for review under sub-section (7) of section 78.- (1) The State Government may, either on its own motion or on the application made by the employer or any worker, review its order granting or refusing to grant permission under sub-section (4) of the section 78.

(2) The employer or any worker concerned, along with the order referred to in sub-rule (1), may make an application, within thirty days from the date on which the order is made, to the State Government for reviewing the order and the State Government shall within two months from the date on which the application is made dispose of the application after providing the concerned parties an opportunity of being heard.

(3) Where the State Government takes step, to review the order referred to in sub-section (1), on its own motion, it may take such step within one month from the date on which the order is made and after providing the concerned parties the opportunity of being heard dispose of such review within two months from the date on which such step is taken.

50. Manner of making application to the State Government by the employer for the intended retrenchment and manner of serving copy of such application to workers under sub-section (2) of section 79.- An application for prior permission referred to clause (b) of sub-section (1) of section 79 shall be made by the employer in Form- XXIII stating clearly therein the reasons for the intended retrenchment electronically and a copy of such application shall also be sent to concerned workers electronically or in person or by registered post or speed post. Such application shall also be displayed conspicuously by the employer on a notice board or on electronic board at the main entrance to the industrial establishment.

51. Time-limit for review under sub-section (6) of section 79.- (1) The State Government may, either on its own motion or on the application made by the employer or any worker, review its order granting or refusing to grant permission under sub-section (3) of section 79.

(2) The employer or any worker concerned, along with the order referred to in sub-rule (1), may make an application, within thirty days from the date on which the order is made, to the State Government for reviewing the order and the State Government shall within two months from the date on which the application is made dispose of the application after providing the concerned parties an opportunity of being heard.

(3) Where the State Government takes step, to review the order referred to in sub-section (1), on its own motion, it may take such step within one month from the date on which the order is made

and after providing the concerned parties the opportunity of being heard dispose of such review within two months from the date on which such step is taken.

52. Application to the State Government by the employer for intended closing down of an industrial establishment and the manner of serving copy of such application to the representatives of workers under sub-section (1) of section 80.- An employer who intends to close down an industrial establishment to which Chapter X of the Code applies shall apply electronically in Form XXIII for prior permission at least ninety days before the date on which intended closure is to become effective to the State Government, stating clearly therein the reasons for the intended closure of the industrial establishment and simultaneously a copy of such application shall also be sent to the representatives of the workers electronically and in person or by Registered or speed post.

53. Time-limit for review under sub-section (5) of section 80.- (1) The State Government may, either on its own motion or on the application made by the employer or any worker, review its order granting or refusing to grant permission under sub-section (2) of section 80.

(2) The employer or any worker concerned, along with the order referred to in sub-rule (1), may make an application, within thirty days from the date on which the order is made, to the State Government for reviewing the order and the State Government shall within two months from the date on which the application is made dispose of the application after providing the concerned parties an opportunity of being heard.

(3) Where the State Government takes step, to review the order referred to in sub-section (1), on its own motion, it may take such step within one month from the date on which the order is made and after providing the concerned parties the opportunity of being heard dispose of such review within two months from the date on which such step is taken.

Chapter XI

WORKER RE-SKILLING FUND

54. Contribution from such other sources to be made to the worker re-skilling fund under clause (b) of sub-section (2) of section 83- (1) The State Government may contribute to worker re-skilling fund for the purpose of re-skilling of workers.

(2) The corporate bodies may contribute to the worker re-skilling fund as Corporate Social Responsibility.

(3) Any individual may contribute to re-skilling fund.

55. Manner of utilization of fund under sub-section (3) of section 83.- Every employer who has retrenched a worker or workers under this Code, shall, within ten days, at the time of retrenching a worker or workers shall electronically transfer an amount equivalent to fifteen days of last drawn wages of such retrenched worker or workers in the account (name of the account shall be displayed on the website of the Labour Resource Department)to be maintained by the State Government. The fund so received shall be transferred by the State Government to each worker or workers' account electronically within forty five days of receipt of funds from the employer and the worker shall utilize such amount for his re-skilling. The employer shall also submit the list containing the name of each worker retrenched the amount equivalent to fifteen

days of wages last drawn in respect of each worker along with their bank account details to enable the State Government to transfer the amount in their respective account.

Chapter XII

OFFENCES AND PENALTIES

56. Manner of composton of offence by a Gazetted Officer specified under sub-section (1) of section 89 and the manner of making application for the compounding of an offence specified under sub-section (4) of section 89.-

(1) The Deputy Labour Commissioner of the concerned area for the purposes of compounding of offences under subsection (1) of section 89 (hereinafter referred to as the compounding officer), shall in the offences in which prosecution is not instituted, if the compounding officer is of the opinion that any offence under the Code for which the compounding is permissible under section 89, he shall send a notice through electronically and Registred and speed post to the accused in Form XXIV consisting of three parts. In part I of such Form, the compounding officer shall interalia specify the name of the offender and his other particulars, the details of the offence and in which section the offence has been committed, the compounding amount required to be paid towards the compounding of the offence. Part II of the Form shall specify the consequences if the offence is not compounded and part III of the Form shall contain the application to be filed by the accused if he desires to compound the offence. Each notice shall have a continuous unique number containing alphabets or numeric and other details such as officer sending notice, year, place, type of inspection for the purpose of easy identification.

(2) The accused to whom the notice referred to in sub-rule (1) is served, may send the part III of the Form duly filled by him to the compounding officer electronically and deposit the compounding amount electronically otherwise, within fifteen days of the receipt of the notice, in the account specified by the compounding officer in the notice.

(3) Where the prosecution has already been instituted against the accused in the competent Court, the accused may make an application to the Court to allow composition of the offence against him and the Court, after considering the application, may allow composition of the offence by the compounding officer in accordance with provisions of section 89 and the procedure specified in this rule.

(4) If the accused complies with the requirement of sub-rule (2), the compounding officer shall compound the offence for the amount of money deposited by the accused and-

(a) if the offence is compounded before the prosecution, then, no complaint for prosecution shall be instituted against the accused and if the offence is compounded pending proceeding under section 85, the compounding officer shall intimate the composition to the officer referred to in that section who shall after intimation close the proceeding in respect of the accused person of such offence; and

(b) if the offence is compounded after the institution of prosecution under sub-rule (3) with the permission of the Court, then, the compounding officer shall treat the case as closed and intimate the composition of the offence to the competent Court by which such composition was allowed and after receiving such intimation, the Court shall discharge the accused person and close the prosecution.

(5) The compounding officer shall exercise the powers to compound the offence under this rule, subject to the direction, control and supervision of the State Government.

Chapter XIII

MISCELLANEOUS

57. Protected workers under sub-section (3) and (4) of section 90.—

(1) Every registered Trade Union connected with an industrial establishment, to which the provisions of the Code apply, shall communicate to the employer before the 30th April of every year, the names and addresses of such of the officers of such Trade Union who are employed in that establishment and who, in the opinion of such Trade Union should be recognized as protected workers.

(2) Any change in the incumbency of any officer of the Trade Union referred to in sub-rule (1) shall be communicated to the employer by such Trade Union within fifteen days of such change.

(3) The employer shall, within fifteen days of the receipt of the names and addresses from the Trade Union under subrule (1) and subject to the provisions of sub-section (3) and sub-section (4) of section 90, recognize such workers to be protected workers for the purposes of the said section and communicate to such Trade Union, in writing, the list of workers recognized as protected workers for a period of twelve months from the date of such communication.

(4) Where the total number of names received by the employer under sub-rule (1) exceeds the maximum number of protected workers, admissible for the industrial establishment under sub-section (4) of section 90, the employer shall recognize only such maximum number of workers as protected workers:

Provided that where there is more than one registered Trade Union in the industrial establishment, the maximum number shall be so distributed by the employer among the Trade Unions that the numbers of recognized protected workers in individual Trade Unions bear practicably the same proportion to one another as the membership figures of the Trade Unions; and the employer shall in that case intimate in writing to the President or the Secretary of each of the concerned Trade Union, the number of protected workers allotted to it:

Provided further that where the number of protected workers allotted to such a Trade Union under this subrule falls short of the number of officers of such Trade Union seeking protection, then that Trade Union shall be entitled to select the officers to be recognized as protected workers; and such selection shall be made by that Trade Union and communicated to the employer within five days of the receipt of written intimation of the employer in this regard.

(5) Where a dispute arises between an employer and any registered Trade Union in any matter connected with the recognition of protected workers under this rule, such dispute shall be referred to the Registrar or any authority notified by the State Government, whose decision there on shall be final.

58. Complaint by an aggrieved worker under section 91.-

(1) Every complaint under section 91 of the Code shall be made electronically or registered post or speed post in Form-XXV and shall be accompanied by as many copies as there are opposite parties mentioned in the complaint.

(2) Every complaint under sub-rule (1) shall be verified by the worker making the complaint or by authorized representative of the worker proved to the satisfaction of the conciliation officer, arbitrator, Tribunal or the Industrial Tribunal, as the case may be, to be acquainted with the facts of the case.

59. Authorization of worker for representing in any proceeding under sub-section (1) of section 94.- Where the worker is not a member of any Trade Union, then, any member of the executive or other office-bearer of any Trade Union connected with or by any other worker employed in the industry in which the worker is employed may be authorized by such worker to represent him in any proceeding under the Code relating to a dispute in which the worker is a party in Form-XIII.

60. Authorization of employer for representing in any proceeding under sub-section (2) of Section 94.-Where the employer, is not a member of any association of employers, may authorize in Form-XIII an officer of any association of employers connected with, or by any other employer engaged in, the industry in which the employer is engaged to represent him in any proceeding under the Code relating to a dispute in which the employer is a party.

61. Holding an enquiry under sub-section (1) of section 85.-

(1) On receipt of a complaint of the offence committed under sub-sections (3), (5), (7), (8), (9), (10), (11) and (20) of section 86 and sub-section (7) of section 89, the same shall be enquired by Deputy Labour Commissioner of the concerned area for such purpose under sub-section (1) of section 85 (hereinafter referred to as the enquiry officer).

(2) On receipt of the complaint, the enquiry officer shall call upon the person or persons through a notice to be sent electronically, or by registered post or speed post and upload a copy of the same on the designated portal, to appear before him on a specified date together with all relevant documents and witnesses, if any, and shall inform the complainant of the date so specified. Where a party so desires, he may request in writing to the enquiry officer to issue notice in the enquiry only by post and also in cases where the enquiry officer feels that no electronic means of communication are available to the parties concerned, he may send such notice by registered post or speed post.

(3) If the person, to whom notice has been issued under sub-rule (2), or his representative fails to appear on the specified date, the enquiry officer may proceed to hear and determine the complaint ex-parte.

(4) If the complainant fails to appear on the specified date without any intimation to the enquiry officer on two consecutive dates, the enquiry officer may dismiss the complaint:

Provided that not more than three adjournments may be given on the joint application made by complainant and the opposite party:

Provided further that the enquiry officer shall at his discretion permit hearing the parties or any of the party, as the case may be, through video conferencing.

(5) The authorisation to appear on behalf of any person, under sub-section (2) of section 85 shall be given by a certificate or electronic certificate, as the case may be, which shall be presented to the enquiry officer during the hearing of the complaint and shall form part of the record.

(6) Any person who intends to appear in the proceeding on behalf of complainant shall present himself before the enquiry officer and submit a brief statement in writing explaining the reason for his appearance.

(7) The enquiry officer shall record an order on the statement referred to in sub-rule (6) permitting the person referred to in that sub-rule to appear in the proceeding on behalf of complainant, and in the case of refusing such permission, the enquiry officer shall include reasons for the same, and incorporate it in the record.

(8) The complaint or other documents relevant to the complaint may be presented in person to the enquiry officer at any time during hours fixed by the enquiry officer, or may be sent to him electronically, or by registered post or speed post and the opposite party shall have the right to reply the complaint and such other documents.

(9) The enquiry officer shall endorse, or cause to be endorsed, on each document the date of its presentation or receipt, as the case may be, and if the documents are submitted electronically, no such endorsement shall be necessary.

(10) The enquiry officer may refuse to entertain a complaint, if he considers that the complaint is incomplete and may ask the complainant to rectify the defects within the time specified by him for such purpose:

Provided that if the enquiry officer finds that it is not possible to rectify the defects in the complaint, he may at once return such complaint indicating the defects.

(11) Where the complaint is presented again, after rectification of the defects, the date of such re-presentation shall be deemed to be the date of presentation for the purpose of sub-section (1) of section 85.

(12) The enquiry officer may, after giving the complainant an opportunity of being heard, refuse to entertain a complaint presented under sub-section (1) of section 85, if he is satisfied for reasons to be recorded in writing that—

(a) the complainant is not entitled to present the complaint; or

(b) the complainant has filed the complaint beyond six months from the date on which the offence complained is committed;

(c) the complainant fails to comply the directions given by the inquiry officer under sub-section (2) of section 85.

(13) The enquiry officer shall, in all cases, mention the particulars at the time of passing of order containing the details, such as, the date of complaint, name and address of the complainant, name

and address of the opposite party or opposite parties, section-wise details of the offence committed, plea of the opposite party, findings and brief statement of the evidence taken including cross examination, reasons and penalty imposed with his signature, date and place.

(14) The enquiry officer shall, in respect of procedure, be guided by the relevant provisions of the Orders of the First Schedule of the Code of Civil Procedure, 1908 (5 of 1908), with such alterations as the enquiry officer may deem fit, not affecting their substance, for adapting them to the matter before him, and save where they conflict with the express provisions of the Code or these rules.

(15) The enquiry officer shall, after the case has been heard, pass an order or give a direction on the same day or on a future date to be fixed for this purpose.

(16) Any person, who is either a complainant or an opposite party or his representative, or any person permitted under sub-rule (7) shall be entitled to inspect any complaint, or any other document filed with the inquiry officer, in a case to which he is a party or representing a party.

62. Expenses of witness.- Every person who is summoned and duly attends or otherwise appears as a witness before a Tribunal or arbitrator shall be entitled to an allowance for expenses according to scale for the time being in force with respect to witnesses in the civil court in the State where the enquiry, adjudication or arbitration, as the case may be, is being conducted.

63. Submission of a copy each of the Form to the office of Director General, Labour Bureau under clause (zzf) of sub-section 2 of section 99. – A copy each of Form XX (notice of strike), Form XXI (notice of lockout), Form XXII (notice for intimation of retrenchment or closure to the State Government), Form XXIII (Application for permission of lay-off or retrenchment or closure), and Form XXIV (compounding of offences), shall be shared electronically with Director General, Labour Bureau in auto-mode.

64. Publication for communication.- The State Government, the Tribunal, the National Tribunal, every employer for which the State Government is the appropriate Government, every Trade Union or negotiating union or the constituents of negotiating council and every authority referred to in these rules shall adequately make known their e-mail id or website or portal or any or all of them, as the case may be, by specifying in the letter-head, for the purposes of every communication to effect service of messages and documents under these rules.

65. Maintenance of records, registers, forms, notice, and display on board- All records, registers, forms, notice, display board and other documents which are required to be maintained under the Industrial Relations Code, 2020 (36 of 2020) can be maintained in electronic manner and in the required format or containing the information as is required and they shall be produced and shown as and when required by the authority or Inspector-cum-Facilitator under this Code and rules framed thereunder. The maintenance of these records shall comply with the requirement of retention of records.

66. Appointment of Commissioner.—Where it is necessary to appoint a Commissioner under sub-section (3) of section 59, the Tribunal may appoint a person with experience in the particular industry, trade or business involved in question referred to in sub-section (2) of section 59 or a person with experience as a judge of civil court, or as a stipendiary magistrate or as a

Registrar or Secretary of a Tribunal constituted under any Central Act or Tribunal or National Tribunal constituted under the Code.

67. Fees for the Commissioner, etc.— (1) The Tribunal shall, after consultation with the parties, estimate the probable duration of the enquiry and fix the amount of the Commissioner's fees and other incidental expenses and direct the payment thereof into the nearest treasury, within a specified time, by such party or parties and in such proportion as it may consider fit. The Commission shall not issue until satisfactory evidence of the deposit into the treasury of the sum fixed is filed before the Tribunal:

Provided that the Tribunal may from time to time direct that any further sum or sums be deposited into the treasury within such time and by such parties as it may consider fit:

Provided further that the Tribunal may in its discretion, extend the time for depositing the sum into the treasury.

(2) The Tribunal may, at any time, for reasons to be recorded in writing, vary the amount of the Commissioner's fees in consultation with the parties.

(3) The Tribunal may direct that the fees shall be disbursed to the Commissioner in such installments and on such date as it may consider fit.

(4) The undisbursed balance, if any, of the sum deposited shall be refunded to the party or parties who deposited the sum in the same proportion as that in which it was deposited.

68. Time for submission of report. — (1) Every order for the appointment of Commissioner under sub-section (3) of section 59 shall indicate a date, allowing sufficient time, for the Commissioner to submit his report.

(2) If for any reason the Commissioner anticipates that the date fixed for the submission of his report is likely to be exceeded, he shall apply, before the expiry of the said date, for extension of time setting forth grounds thereof and the Tribunal shall take such grounds into consideration in passing orders on the application:

Provided that the Tribunal may grant extension of time notwithstanding that no application for such extension has been received from the Commissioner within the reasonable time limit.

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संचिका संख्या-1 / IRC-10-01 / 2020, श्र०सं०-

पटना, दिनांक-

बिहार राज्यपाल के आदेश से

(राजीव रंजन)

सरकार के संयुक्त सचिव

संचिका संख्या-1 / IRC-10-01 / 2020, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:-प्रभारी पदाधिकारी, ई-गजट मुद्रण कोषांग, वित्त विभाग, बिहार, पटना को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित। 200 (दो सौ) अतिरिक्त प्रतियाँ विभाग को उपलब्ध कराने की कृपा की जाय।

सरकार के संयुक्त सचिव

संचिका संख्या-1 / IRC-10-01 / 2020, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:- मुख्य सचिव, बिहार, पटना/मुख्यमंत्री के प्रधान सचिव, बिहार, पटना/अवर सचिव, श्रम संसाधन विभाग, बिहार, पटना/स्थानिक आयुक्त, बिहार भवन, नई दिल्ली/सभी अपर मुख्य सचिव/सभी प्रधान सचिव/सभी सचिव/सभी प्रमंडलीय आयुक्त/सभी जिला पदाधिकारी/सभी विभागाध्यक्ष/ सचिव, विधि विभाग, बिहार, पटना /प्रधान सचिव, मंत्रिमंडल सचिवालय विभाग/ सचिव, बिहार चैम्बर ऑफ कॉमर्स, बिहार, पटना को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित।

सरकार के संयुक्त सचिव

संचिका संख्या-1 / IRC-10-01 / 2020, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:- मुख्य कारखाना निरीक्षक, बिहार, पटना / मुख्य वाष्पित्र निरीक्षक, बिहार, पटना / उप मुख्य कारखाना निरीक्षक, बिहार, पटना / निदेशक, कृषि श्रमिक, बिहार, पटना / सभी उप श्रमायुक्त / सभी सहायक श्रमायुक्त / सभी श्रम अधीक्षक / सभी कारखाना निरीक्षक को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित।

सरकार के संयुक्त सचिव